

STATE OF NEW YORK

5589--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 18, 2025

Introduced by M. of A. BRONSON, SIMONE, TAPIA, SHIMSKY, GONZALEZ-ROJAS, STECK, TAYLOR, CHANG, DAVILA, COLTON, SEAWRIGHT, EACHUS, GRIFFIN, SEPTIMO, ROMERO, ALVAREZ, ROSENTHAL, BURROUGHS, RAMOS, MEEKS, VALDEZ, PAULIN, SIMON, DE LOS SANTOS, CLARK -- read once and referred to the Committee on Labor -- recommitted to the Committee on Labor in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to the convening of a human services employee wage board

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The labor law is amended by adding a new article 19-E to
2 read as follows:

3 ARTICLE 19-E
4 HUMAN SERVICES EMPLOYEES

5 Section 697. Statement of public policy.

6 697-a. Definitions.

7 697-b. Human services employee wage board.

8 § 697. Statement of public policy. The legislature hereby finds and
9 declares that there are persons employed by human services providers in
10 the state of New York at wages insufficient to provide adequate mainte-
11 nance for themselves and their families.

12 Human services workers are essential to the state and localities'
13 ability to assist new yorkers confronting a range of social challenges.
14 To achieve cost savings, government has transferred most legally
15 mandated human services for New Yorkers to nonprofits and in turn have
16 created massive pay disparities within the field. Government is not just
17 the predominant funder of human services in New York, it is also the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 main driver of human services salaries as it directly sets salary rates
2 on contracts or does so indirectly by establishing costs for a unit or
3 service, along with required staffing on a contract.

4 Nonprofits contracted to provide human services are not only provided
5 insufficient funding to pay their employees, but are met with chronic
6 delays in payment, underfunding, and a lack of sincere collaboration to
7 create meaningful and lasting interventions. Between two thousand eight
8 and two thousand eighteen, the state cut human services funding by twen-
9 ty-six percent, with lower rates now than in nineteen hundred eighty.
10 These contracting practices have created extreme pay disparities where
11 human services workers make on average seventy-one percent of what
12 government employees make, and eighty-two percent of what private sector
13 workers receive.

14 The pay disparities in the human services sector also have important
15 consequences for race and gender equity. The human services provider
16 workforce of nearly eight hundred thousand people is overwhelmingly
17 female (sixty-six percent), over two-thirds are full-time workers of
18 color (sixty-eight percent), and nearly half (forty-six percent) are
19 women of color. The majority (sixty-three percent) have a four year
20 college degree or better; yet they make about twenty thousand dollars a
21 year less than a public sector worker with a comparable education.

22 Government savings are being borne on the backs of low-income neigh-
23 borhoods and black, indigenous, and people of color (BIPOC) communities
24 who get reduced services and a workforce that is predominantly made up
25 of women and people of color who are paid poverty-level wages. The rela-
26 tively low pay in the core human services sector means that fifteen
27 percent of all workers (both full- and part-time) qualified for food
28 stamps in two thousand sixteen through two thousand eighteen.

29 A human services employee wage board is necessary to investigate the
30 pay disparities between government employees and employees of contracted
31 human services providers and develop recommendations on adequate and
32 equitable wages.

33 § 697-a. Definitions. As used in this article:

34 1. "Human services" shall mean any service provided to individuals or
35 groups of individuals, for the purpose of improving or enhancing such
36 individuals' health and/or welfare, by addressing social problems
37 including but not limited to: domestic violence, teenage pregnancy,
38 migrant health problems, child abuse, nutritional deficiencies, suicide,
39 hunger, unemployment, lack of suitable shelter, crime, drug and alcohol
40 abuse, environmental justice, and poverty.

41 2. "Human services provider" shall mean any: (a) not-for-profit or
42 charitable organization, or (b) local agency as defined in subdivision
43 three of this section, that (i) contracts with any state agency or other
44 public entity, as defined in subdivisions four and five of this section
45 to provide human services as defined in subdivision one of this section,
46 or (ii) directly or indirectly receives any public funds to provide or
47 contract with third persons to provide human services for the benefit of
48 the general public or specific client groups.

49 3. "Local agency" shall include all county, city, town and village
50 governing bodies, all other public corporations, special districts and
51 school districts in the state.

52 4. "State agency" shall include any department, division, board,
53 bureau, commission, office, agency, authority or public corporation of
54 the state.

1 5. "Public entity" shall mean any local agency as defined in subdivi-
2 sion three of this section and any state agency as defined in subdivi-
3 sion four of this section.

4 § 697-b. Human services employee wage board. 1. Membership. The
5 commissioner shall hereby convene a human services employee wage board.
6 The wage board shall be comprised of twelve members: three human
7 services employees, three human services providers, three coalitions
8 representing human services providers, and three members appointed by
9 the commissioner, who shall be selected from the general public and one
10 of whom shall be designated as chairperson. The wage board shall hold
11 its first hearing no later than March first, two thousand twenty-seven.
12 The members of the board shall not receive a salary or other compen-
13 sation, but shall be paid actual and necessary traveling expenses while
14 engaged in the performance of their duties.

15 2. Organization. Two-thirds of the members of the board shall consti-
16 tute a quorum. The chairperson may from time to time formulate rules
17 governing the manner in which the wage board shall function and perform
18 its duties under this article.

19 3. Powers. The wage board shall have power to conduct public hearings.
20 The board may also consult with human services providers and human
21 services employees, and their respective representatives, in the occupa-
22 tion or occupations involved, and with such other persons, including the
23 commissioner, the commissioner of children and family services, the
24 commissioner of temporary and disability assistance, the commissioner of
25 addiction services and supports, the director of the state office for
26 the aging, the commissioner of people with developmental disabilities,
27 the commissioner of mental health, the commissioner of health, and the
28 deputy secretary for human services and mental hygiene, as it shall
29 determine. The board shall also have power to administer oaths and to
30 require by subpoena the attendance and testimony of witnesses, and the
31 production of all books, records, and other evidence relative to any
32 matters under inquiry. Such subpoenas shall be signed and issued by the
33 chairperson of the board and shall be served and have the same effect as
34 if issued out of the supreme court. The board shall have power to cause
35 depositions of witnesses residing within or without the state to be
36 taken in the manner prescribed for like depositions in civil actions in
37 the supreme court. The board shall not be bound by common law or statu-
38 tory rules of procedure or evidence.

39 4. Public hearings. Within forty-five days of the appointment of the
40 wage board, the board shall conduct public hearings. The wage board
41 shall only meet within the state and shall hold at least three hearings
42 at which the public will be afforded an opportunity to provide comments.
43 At least one Spanish language interpreter shall be present at each
44 public hearing to interpret oral testimony delivered in Spanish. Where a
45 witness requests in advance of such hearing an interpreter in a language
46 other than Spanish, including but not limited to sign language, an
47 interpreter in that language shall be provided. Any materials advertis-
48 ing such hearings shall be bilingual in English, Spanish, and other
49 languages commonly spoken by human services employees in the geographic
50 region of the hearing. Any written materials disbursed at the hearing or
51 subsequent to the hearing, including written testimony and hearing tran-
52 scripts, shall be available in English, Spanish, and any other language
53 upon request and shall be made available in a format accessible to those
54 with visual disabilities upon request. Any visual materials presented at
55 the hearing or subsequent to the hearing shall be made available in a
56 format accessible to those with visual disabilities upon request.

1 5. Report. The wage board shall make a report to the governor and the
2 legislature. Such report shall be published contemporaneously on the
3 website of the department. The report and recommendations of the board
4 shall be submitted only after a vote of not less than a majority of all
5 its members in support of such report and recommendations. Such report
6 shall be submitted no later than December thirty-first, two thousand
7 twenty-seven.

8 6. Considerations. The wage board shall consider the pay disparities
9 between human services employees and government and private sector
10 employees performing the same duties, fringe benefits and other employee
11 benefits, human services employee wages relative to the federal poverty
12 guidelines, the impact of cost of living on human service employee
13 wages, and recommendations for wages that would provide for adequate
14 maintenance and to protect the health of human services employees.

15 7. Commissioner's actions. The commissioner shall comply with section
16 six hundred fifty-six of this chapter upon receipt of the wage board's
17 recommendations. The commissioner may reconvene the same wage board or
18 appoint a new wage board in compliance with section six hundred fifty-
19 nine of this chapter.

20 § 2. This act shall take effect immediately.